

HOUSE No. 4332

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1091) of Christine P. Barber relative to pharmacists as healthcare providers, reports recommending that the accompanying bill (House, No. 4332) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to pharmacists as healthcare providers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 94C is hereby amended by inserting, after section 19F, the following section:-

2 Section 19G. (a) Notwithstanding any general or special law to the contrary, a pharmacist
3 may order, test, screen, and treat the following health conditions: influenza, streptococcal
4 infections, COVID-19 or any other emerging and existing public health threats identified by the
5 department if permitted by an order, rule, or regulation.

6 b) The department shall establish standard procedures for pharmacists to test, screen and
7 initiate treatment for qualified health conditions.

8 (c) A pharmacist who orders, tests, screens, or treats health conditions under this section
9 may use any test that may guide clinical decision making that is waived under the federal
10 Clinical Laboratory Improvement Amendments of 1988, or the federal rules adopted thereunder,
11 or any established screening procedure that is established via a statewide protocol.

12 (d) A pharmacist may delegate the administrative and technical tasks of performing a test
13 waived by the federal Clinical Laboratory Improvement Amendments of 1988 to a pharmacy
14 technician acting under the supervision of the pharmacist.

15 (e) This section prohibits the denial of reimbursement under health benefit plans for
16 services and procedures performed by a pharmacist that are within the scope of the pharmacist's
17 license and would be covered if the services or procedures were performed by a physician, an
18 advanced practice nurse, or physician's assistant. An insurance carrier or pharmacy benefit
19 manager shall develop adequate provider and consult codes as authorized by this act for
20 pharmacy compensation.